

24SMCV05364 24SMCV05364

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 24SMCV05364 Hearing Date: July 29, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

BILL HOWELL AND DEBORAH HOWELL,

Trustees of the Howell Family Trust dated July 2, 2013,

Plaintiff,

v.

OLIVIA CORBETT aka OLIVIA CORVETT

aka OLIVIA JADE CORVETT aka OLIVIA JANE CORBETT aka HANIA, et al.,

Defendants.

Case No.:

24SMCV05364

Hearing Date: 7/29/26

Trial Date:

7/26/27

[TENTATIVE] RULING RE:

MOTION FOR ATTORNEY'S FEES

Background

Plaintiffs

leased residential property to Defendant Olivia Corbett. Plaintiffs received notification from the Los Angeles County Department of Regional Planning in March 2022 indicating that the unit leased to Defendant was unpermitted and in violation of an

applicable zoning ordinance. Plaintiffs were ordered to vacate and remove the unpermitted development. Plaintiffs issued Notice to Defendant but Defendant refused to leave the premises and ceased paying rent when she discovered the unit was unpermitted. Plaintiffs were forced to file an unlawful detainer action against Defendant that was ultimately resolved by a stipulated judgment for possession only. Plaintiffs filed this action thereafter to collect holdover rent for the time Defendant occupied the unpermitted unit after being notified to leave.

Plaintiffs

filed a complaint on November 1, 2024 alleging (1) quantum meruit; (2) common counts; and (3) unjust enrichment.

On

December 5, 2026, Defendant filed an answer to the complaint in pro per against Plaintiffs. On February 26, 2026, Defendant filed a cross-complaint after obtaining leave of court to do so on January 23, 2026. Defendant alleged Plaintiffs/Cross-Defendants failed to maintain the property in a habitable condition, including that the property was unpermitted, suffered from plumbing issues, contained nonoperational appliances and suffered from a rat infestation. Defendant's cross-complaint alleges (1) breach of the implied warranty of habitability, (2) breach of the covenant of quiet enjoyment, (3) tenant harassment, (4) retaliation, (5) constructive eviction, (6) negligence, (7) intentional infliction of emotional distress, (8) unfair, unlawful and deceptive business act or practice and (9) fraud.

On

March 30, 2026, Plaintiffs/Cross-Defendants ("Cross-Defendants") filed an answer to Defendant's cross-complaint.

On April 14, 2026, Cross-Defendants filed a SLAPP Motion to Defendant's

cross-complaint. On May 12, 2026, the Court granted Cross-Defendants' SLAPP Motion.

On

June 1, 2026, Cross-Defendants filed a motion for attorney's fees as prevailing parties on the SLAPP Motion. As of July 27, 2026, no opposition or reply has been filed.

Legal Standard

The anti-SLAPP statute provides that "in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (Code Civ. Proc., § 425.16(c)(1).) "[A]ny SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.)

A prevailing party on an anti-SLAPP motion is entitled to an award of attorney fees and costs only for the anti-SLAPP motion itself, not for the entire action. (Lafayette Morehouse, Inc. v. Chronicle Publishing Co. (1995) 39 Cal.App.4th 1379, 1381, 1383.) This holding has been slightly expanded, to the extent that it has been interpreted to mean that a prevailing party is entitled to fees "incurred in connection with" the anti-SLAPP motion. (Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi (2006) 141 Cal.App.4th 15, 21.)

The fee award is against the losing plaintiff, not the losing plaintiff's attorney. Plaintiff's counsel is not a party to the action and thus not subject to a fee award under CCP § 425.16. (Moore v. Kaufman (2010) 189 Cal.App.4th 604, 614.)

An award of fees may

also include "the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16." (Id. at p. 1141.)

"It is well established that the amount of an attorney fee award under the anti-SLAPP statute is computed by the trial court in accordance with the familiar lodestar method." (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 432 [internal quotations omitted].) Under the lodestar method, the court tabulates the attorney fee lodestar by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the

community for similar work.” (Ibid.)

With regard to the

number of hours reasonably expended, “the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) In determining the reasonable hourly rate, the “burden is on the successful party to prove the appropriate market rate to be used in calculating the lodestar.” (MBNA America Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13.) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys’ efforts are unorganized or duplicative. (Serrano v. Unruh (1982) 32 Cal.3d 621, 635, fn. 21.)

Analysis

Cross-Defendants request attorney’s fees in the amount of \$31,899 and costs in the amount of \$2,880.95. Cross-Defendants are entitled to attorney’s fees and costs pursuant to Code of Civil Procedure section 425.16 subdivision (c) as prevailing parties. Cross-Complainant did not file an opposition.

Cross-Defendants’ fee request is based on the following work:

SLAPP

Motion

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Isaac Aba—34.5 hours @ \$500/hr to prepare the SLAPP Motion and the reply to the opposition to the SLAPP Motion (Motion, Aba Dec., ¶17.)

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Eddy Johnson—8.8 hours @ \$900/hr to prepare the SLAPP Motion and the reply to the opposition to the SLAPP Motion (Motion, Johnson Dec., ¶5.)

SLAPP

Fee Motion

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Isaac Aba—6.2 hours @
\$500/hr (Motion, Aba Dec., ¶129.)

.
Eddy Johnson--8 hours
@ \$900/hr (Motion, Johnson Dec., ¶15.)

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Estimated additional 3
hours to prepare reply to opposition

.
Estimate 2 hours for
oral argument of fee motion

Cross-Defendants' request for 43.3 hours in fees for preparation of the SLAPP Motion is reasonable given the legal and factual complexity of the matter. Based on the Court's familiarity with fee requests on successful SLAPP motions, counsel's requested market rate is commensurate with the market rate for similar legal services in Los Angeles. The hourly rates are also reasonable given counsel's educational and professional experience. (Motion, Aba Dec., ¶¶13-16; Johnson Dec., ¶¶2-5.)

However, Cross-Complainant did not file an opposition. The additional 3 hours estimated for reply preparation is therefore denied. The additional 2 hours estimated for oral argument is reduced to 1 hour given the lack of any opposition.

The Court awards Cross-Complainants \$20,850 for the work of Isaac Aba and \$8,640 for the work of Edward Johnson on the SLAPP Motion and the Fee Motion for a total of \$29,490.

Cross-Complainants also request costs in the amount of \$2,880.95. Based on the memorandum of costs filed on May 20, 2026, Cross-Defendants have included general photocopying charges for the SLAPP motion, e.g. 50 cents per page for the motion, the reply and even the opposition papers, under Item 13 for "Models, enlargements, and photocopies of

exhibits.” (Memorandum of Costs, Worksheet, Attachment A, Section 13.) General photocopying charges, not attributable to exhibits reasonably helpful to the trier of fact, are expressly disallowed.

(Code of Civ. Proc., §1033.5, subd. (a)(13) and (b)(3).) There is also no basis for Cross-Defendants to recover the costs of Cross-Complainant’s opposition papers. As such, the request for costs is reduced by \$319 and granted in the amount of \$2561.95.

Conclusion

Cross-Complainants’

Motion for Attorney’s Fees and Costs pursuant to Code of Civil Procedure section 425.16 subdivision (c) is GRANTED in the amount of \$29,490 in fees and \$2,561.95.

Dated: July 29, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court